CFN: 20210860782 BOOK 32853 PAGE 1292
DATE:11/16/2021 03:33:20 PM
HARVEY RUVIN, CLERK OF COURT, MIA-DADE CTY

NOT AN OFFICIAL COPY - PUBLIC ACCESS - NOT AN OFFICIAL COPY - PUBLIC ACCESS

City of Miami

ORDER OF THE UNSAFE STRUCTURES PANEL

City of Miami
444 SW 2nd Avenue
Miami, FL 33130

FOR FULL INFORMATION CONCERNING THE DECISION ORDER, PLEASE READ THIS DOCUMENT IN ITS ENTIRETY

File Number: 16-02957 **Final Action: 11/12/2021**

Owner's Name: **ATELIER 28, LLC**
Owner's Mailing Address: **236 NE 28 STREET, MIAMI, FL 33137**
Case #: **BB2019008322**
RE: **236 NE 28 ST**
Folio Number: **01-3230-017-0260**
Legal Description: **LOT 30, BANKERS PARK, PLAT BOOK 2, PAGE 53, MIAMI-DADE COUNTY, FL**

The City of Miami's Unsafe Structures Panel Decision, at its meeting on NOVEMBER 12th, 2021 for **Building 1** (**3-STORY, CBS, APARTMENT BUILDING**):

Building 1: Submit 40/50 year recertification report within 30 days

PLANS: The 40/50 Year Recertification Report must be submitted for the structure as per Building Code and Chapter 10 of the Code of the City of Miami. If the report calls for any repairs, all repairs or items needing to be completed or legalized must be done with their respective permits. If plans are required, they shall be prepared by a State of Florida Registered Architect or a Professional Engineer or as permitted by the Florida Building Code, as amended, and shall be Signed and Sealed, (or Stamped) by the Design Professional. All repairs shall be completed **within 210 days from today's date** with a timeline of 30 days to submit report, and an additional 30 days to submit plans, another 60 days to obtain the permit(s), and a final 90 days to finish all repairs and submit an approved 40/50-year recertification report.

All property surveys submitted to this Section for the purpose of obtaining permits shall be current, shall furthermore be Signed and Sealed and shall show all pertinent and required Elevations. (Note: A property survey is required for total demolition permits.)

ANY VIOLATION OF CHAPTER 10 OF THE CITY CODE SHALL RESULT IN THE REVOCATION OF THE OFFENDING PROPERTY'S CERTIFICATE OF USE PURSUANT TO SECTION 2-211 OF THE CITY CODE. FAILURE TO COMPLY WITH THIS ORDER MAY RESULT, AT THE SOLE DISCRETION OF THE CITY, IN THE DEMOLITION OF THE OFFENDING STRUCTURE BY THE CITY OF MIAMI.

The City of Miami Unsafe Structures Panel also ordered that, if compliance is not obtained within the time periods stipulated above, then the Building Official is further instructed to proceed in accordance with Chapter 10, Article VI of the City of Miami Code. There will be no further notices or communication from the City of Miami Unsafe Structures Panel regarding this case.

This document may be recorded by the Building Official with the Public Records of Miami-Dade County. This recording will constitute constructive notice to all concerned as well as any subsequent purchaser, that a decision has been rendered by the City of Miami Unsafe Structures Appeal Panel on the above referenced property in that the property in question is an Unsafe Structure and cannot be occupied until the Violation(s) are cured. Any costs associated with this case and this hearing shall be declared a special assessment pursuant to Chapter 10, Article VI of the City of Miami Code and Chapter 8-5 of the Miami-Dade County Code. Likewise, and to avoid additional hazards, the Electrical Service to the Unsafe Structure will be disconnected and will remain disconnected until the Violation(s) has been fully cured.

Permits for the structure(s) located at the above address must be obtained from the **City of Miami Building Department - 444 SW 2 Avenue, (4th floor), Miami, FL. 33130.**

The City of Miami Unsafe Structures Panel is Quasi-Judicial. The decision and specified compliance date(s) are final and binding. Any owner or interested party, as defined by Section 10-101 of the City Code aggrieved by a decision of the City of Miami Unsafe Structures Panel may seek judicial review of that decision in accordance with the Florida Rules of Appellate Procedure.

INTERESTED PARTIES:
Known Interested Parties for Case No.: BB2019008322

GULF BANK (N/K/A GULF CORPORATION)
3400 CORAL WAY
MIAMI, FL 33145

MANNUEL GARCIA
GULF CORPORATION (F/K/A GULF BANK)
1110 BRICKELL AVENUE, SUITE 901
MIAMI, FL 33131

AGI REGISTERED AGENTS, INC
ATELIER 28 LLC
1000 BRICKELL AVENUE, SUITE 300
MIAMI, FL 33131

NOT AN OFFICIAL COPY - PUBLIC ACCESS - NOT AN OFFICIAL COPY - PUBLIC ACCESS

At a meeting of the Unsafe Structure Panel on 11/12/2021, a motion was made by Panel Member Kouchalakos, seconded by Panel Member Bared, that this Order be APPROVED, passed.

Moved By: _____
Panel Member Kouchalakos

Seconded By: _____
Panel Member Bared

Chair, Unsafe Structure Panel _____ **Date** 11/12/2021
Rafael Rodriguez

NOT AN OFFICIAL COPY - PUBLIC ACCESS - NOT AN OFFICIAL COPY - PUBLIC ACCESS